

		final report must include all information necessary for the court to determine the total amount actually paid to class members and aggrieved employees and any amounts tendered to the State Controller's Office under the unclaimed property law. Plaintiffs are ordered to give notice, including to the LWDA, and to file a proof of service.
5	Corral v. Penn Elcom, Inc., et al. 2023-01363928	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$150,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$45,000.00 for attorneys' fees (not to exceed); \$15,000.00 for attorneys' costs (not to exceed); \$4,500.00 for settlement administration fees (not to exceed); and \$10,000.00 total PAGA penalties (\$7,500.00 to LWDA). Plaintiff is ordered to file and serve <u>by June 4, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached: (1) a fully executed copy of the settlement agreement; (2) fully executed copies of the amendments to the settlement agreement <u>signed by the parties</u>; and (3) the notice packet (in English and Spanish) (revised as stated above). Only <u>one</u> copy of the notice should be attached to the proposed order as an exhibit. Duplicate and/or superseded copies of the notice packet should not be attached to the proposed order as exhibits. The final approval hearing is scheduled for <u>October 8, 2026 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
6	Gutierrez v. Adecco USA, Inc. 2020-01123754	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers and the Supplemental Schmidt Declaration (ROA 264), filed in support of plaintiff's motion for approval of a \$280,000 PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: No enhancement award to plaintiff; \$84,000.00 for attorneys' fees; \$29,693.64 for attorneys' costs;

		\$14,950.00 for settlement administration fees; and \$151,356.36 total PAGA penalties (\$113,517.27 to LWDA). Plaintiff is ordered to submit <u>by June 4, 2026</u> a proposed order and judgment (including the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendment(s) thereto; and notice letter (including the above amounts) in English and Spanish). Only <u>one</u> copy of the notice letter should be attached to the proposed order and judgment. Duplicate and/or superseded copies of the notice letter should not be attached to the proposed order and judgment as exhibits. The final accounting hearing is scheduled for <u>May 27, 2027 at 9:00 a.m.</u> in Department CX105. Plaintiff shall submit a final administrator's report at least 9 court days before the hearing addressing the status of the settlement administration, including the actual amounts paid to the aggrieved employees and the other amounts distributed under the settlement, including any uncashed checks. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
7	Meislik v. Lamkone Restaurants, Inc., et al. 2024-01391500	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$100,000 PAGA settlement. The court has the following questions and comments: 1. Were the motion papers submitted to the LWDA? The proof of service (ROA 67) does not include the LWDA, and Exhibit 3 to the Baker Declaration (ROA 69) states that only the "Proposed Settlement" was submitted to the LWDA. Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The parties should provide the average, high and low individual PAGA payments. 3. Plaintiff should state her total compensation to be received (excluding any enhancement award and including for any individual claims). Plaintiff should also submit a copy of the